

ST. CLAIR & SONS, Inc.

COMMERCIAL LAWN MAINTENANCE, LANDSCAPING & IRRIGATION

4910 WEEPING WILLOW RD.

HOUSTON, TX 77092

OFFICE (713) 680-1301 FAX (713) 680-3154

STCLAIRSONS@SBCGLOBAL.NET

THIS AGREEMENT, MADE AND ENTERED INTO THIS 1ST DAY OF JANUARY, 2024
BY AND BETWEEN ST. CLAIR & SONS, INC. TERMED "CONTRACTOR" AND
MARTIN COURT OWNERS ASSOCIATION HEREIN TERMED "OWNER".

MAIL ADDRESS: C/O LLA PROPERTY PARTNERS, LLC, 5315-B CYPRESS CREEK
PARKWAY, SUITE 190, HOUSTON, TX 77069

CONTACT: LORI ANDERSON PHONE: 832-206-7787

EMAIL: lorianderson@llpropertypartners.com

JOB SITE: 604 MARTIN ST, HOUSTON, TX 77018

**IN CONSIDERATION OF THE MUTUAL COVENANTS IN THIS AGREEMENT,
OWNER AND CONTRACTOR AGREE AS FOLLOWS:**

SCOPE OF WORK - SERVICES TO BE PROVIDED

St. Clair & Sons, Inc. shall furnish all labor and equipment as necessary to provide complete maintenance of all trees, shrubs, groundcovers, turf areas and all other work connected thereto, as specified.

LAWN CARE

Maintain lawns in healthy growing condition by performing the following operations:

1. Mowing & edging weekly through the growing seasons, March - October and two times in November - February (weather permitting). This provides approximately

CONTRACTOR

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42 trips per annum. (We can adjust to your request on the number of mowings/trips).

2. Remove all clippings from walks, driveways, parking lots and roads that are a result from above work after completion. Clippings need not be removed from lawn unless the clippings appear to be detrimental to the appearance of the project.
3. Lawn shall be fertilized two times per year – in early spring and late fall.
4. Insect and disease treatment shall be by the application of necessary insecticides and fungicides as the condition of the lawn requires. Extreme conditions are extra.
5. Trimming around irrigation heads and steel edging.
6. Field supervisor will be on property weekly.
7. Turf pre-emergent and post-emergent: USS Agri-Chemicals or approved equal will be used.

TREES, SHRUBS & GROUNDCOVER CARE

Maintained in a healthy growing condition by performing the following operations:

1. Prune deciduous trees when dormant to promote symmetrical shape in head and remove suckers along trunk when they appear.
2. Prune evergreen trees in the fall and early summer. Large trees (over 7 feet) will be pruned at an additional charge.
3. Prune shrubs and groundcover as necessary to maintain a neat appearance at all times.
4. Remove all dead and damaged branches back to the point of health growth. Large trees (over 7 feet) will be serviced at an additional charge.
5. Remove all material from site the same day.
6. All areas shall be kept free of weeds and neatly cultivated at all times.
7. Fertilize two times per year with 3-2-1 ratio.
8. Treat minor insects and fungus problems. Major problems will be presented as an additional charge.

PARKING LOTS, WALKWAYS AND BUILDINGS GRADE SEAMS

All seams in the concrete of these areas shall be kept free of weeds. All trash will be blown and picked up the day of service in and around the dumpster area.

LITTER PICKUP

Litter shall be removed and taken off site from all landscaped areas on each scheduled visit. Heavy trash or extreme conditions will be performed at an additional charge.

IRRIGATION

- ❖ Irrigation audits will be performed throughout the year as necessary - minimum on a quarterly basis.
- ❖ Irrigation controllers shall be inspected monthly and adjusted to maintain proper operation.
- ❖ Damages noted to irrigation system during audit will be presented to Owner as an estimate for approval before repairs are made.
- ❖ Contractor is not responsible for irrigation repairs as a result of the following; theft, vandalism, vehicular damage, other contractors and acts of God.
- ❖ Licensed and regulated under the Texas Commission on Environmental Quality (TCEQ), PO Box 13087, Austin, Texas 78711: LI #0016495. (Licensed Irrigator).

MATERIALS

All materials shall be the best available.

WATER SUPPLY

- Owner to furnish water
- Hand watering will be an extra charge

COMMERCIAL FERTILIZERS

- Commercial fertilizers shall bear manufacturers label and guaranteed analysis.

_____ CONTRACTOR

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- Fertilizers shall be commercial mixed granules or pellets fertilizer, of which not less than 25% of the total nitrogen shall be slowly soluble. It shall be uniform, free flowing, and suitable for application.

INSECTICIDES, FUNGICIDES, HERBICIDES

- Ortho products or approved equal will be used on shrubs, trees, and groundcover areas.
- Weed killing sprays on concrete areas only to be clean, non-staining.
- Licensed and regulated under the Texas Commercial Pesticide Applicator License (TCPL) #0293942. Texas Department of Agriculture, PO Box 12847, Austin, Texas 78711.

EXTRA SERVICES

- ❖ Replacement of dead material. Proposals to replace dead material will be presented to Owner.
- ❖ Repairs for any depression in the turf or other damages to site caused by vehicular traffic.
- ❖ Approval by owner will be required before repairs to irrigation systems are performed.
- ❖ If necessary, initial clean-up will be bid before contract service begins.
- ❖ Color install for spring will be by the end of April and fall will be by the end of October.
- ❖ Freeze cloth during the winter is an additional charge if requested.
- ❖ Mulching property is extra.

DAMAGES

Damages incurred by contractor, or its employees, during service need to be reported by owner to contractor within forty-eight (48) hours.

_____ CONTRACTOR

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TITLES/HEADINGS

Headings are inserted for the convenience of the parties only and are not to be considered when interpreting this agreement.

CHANGES, ADDITIONS, STIPULATIONS OR LINING OUT

Any changes, additions, stipulations, deletions or lining out, including corrective lining out, by either contractor or owner shall not be considered agreed to or binding by the other unless such modifications have been initialed or otherwise approved in writing by the other.

CAPACITY/INDEPENDENT CONTRACTOR

In providing the services under this agreement, it is expressly agreed that the contractor is acting as an independent contractor and not as an employee. The contractor and the owner acknowledge that this agreement does not create a partnership or joint venture between them, and is exclusively a contract for service.

SEVERABILITY

Should any of the provisions of this agreement be held unenforceable, the other provisions of this agreement shall remain in full force and effect.

WAIVERS

The waiver of any of the terms and conditions of this agreement on any occasion or occasions shall not be deemed a waiver of such terms and conditions on any future occasion. No waiver shall be implied by any isolated or repeated action or inaction. To be effective, any waiver must be in writing executed by the party to be bound thereby,

INDEMNIFICATION - "TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW"

Owner shall defend, indemnify and hold harmless, contractor and its agents and their respective officers, directors, employees, shareholders, partners, joint venturers, affiliates, successors and assigns (the foregoing being collectively referred to as the "Indemnified Parties"), of, from and against any and all liabilities, obligations, claims, demands, causes of action, losses, expenses, damages, fines, judgments, settlements, and penalties including without limitations, costs, expenses and attorney's fees surrounding incidents, thereto, arising out of, based upon, occasioned by, or in any way relating to:

_____ CONTRACTOR

_____ LLA OWNER

- A. A violation of any law or any negligence or willful misconduct by owner.
- B. A breach of this agreement.

APPLICABLE LAW

To the maximum extent permitted by applicable law, the provisions of this agreement shall be governed by and construed and enforced in accordance with the laws of the State of Texas, without regard to principles or conflicts of law. Each of the parties hereto irrevocably and unconditionally confirms and agrees that it is and shall continue to be (i) subject to the jurisdiction of the state courts of the State of Texas, and (ii) subject to service of process in the State of Texas. Each party hereto hereby irrevocably and unconditionally (a) consents and submits to the exclusive jurisdiction of any state or federal court located in the State of Texas, in and for Harris County, for any actions, suits or proceedings arising out of or relating to this agreement or the transactions contemplated by this agreement (and agrees not to commence any litigation relating thereto except in such courts), and (b) waives any objection to the laying of venue of any such litigation in the Harris County Courts.

TERMS

The term of this agreement will be for a period of one (1) year, commencing on JANUARY 1, 2024 and terminating on DECEMBER 31, 2024, in which all obligations of the contractor will end upon the termination of this agreement, except as otherwise provided in this agreement.

Upon expiration of this contract, it will auto renew on a month-to-month interval and all stated will be binding until cancelled by either party with thirty (30) day written notice.

Contractor agrees to abide by all ordinances and laws of the City of Houston, County of Harris, and State of Texas.

This contract may be cancelled with a thirty (30) day written notice by either party.

BILLING AND PAYMENT

The payment for contract monthly maintenance service shall be made as follows: annual costs of \$4,440.00 payable in twelve (12) equal installments of \$370.00 billed on the first (1st) day of each month. Tax is not included in the amount and will be a separate line item included on the invoice. All invoices are net thirty (30) days.

_____ CONTRACTOR

_____  OWNER

CHANGES IN SERVICE

The above amount is based on an annualized cost to service your property based on the number of services per year. If the number of services is decreased during the term, your monthly amount will change based on the decreased number of services. However, the cost to provide services increases when the duration between services increases as it requires more time to service properties when not done on a regular basis. So, the change in the amount will need to be recalculated to determine the new cost of service. In other words, trip charges are based upon the number of services provided during the seasons. Any change will need to be agreed to by both parties, and can still remain in effect under this contract.

SIGNED THIS 30 DAY OF JANUARY, 2024.

St. Clair & Sons, Inc. ("CONTRACTOR" or Representative)

Lori L. Anderson

MARTIN COURT OWNERS ASSOCIATION C/O LLA Property Partners, LLC ("OWNER" or Representative)

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